

51	Sheehan vs. Sheehan 26-01546405	Demurrer to Complaint Tentative Ruling to be updated in the morning.
53	Rebuyon vs. Serra Sol Memory Care 26-01561508	Motion to Compel Arbitration Defendant SJC-Operations, LP dba Serra Sol's (Erroneously sued as Serra Sol Memory Care) ("Defendant") unopposed Motion to Compel Arbitration is GRANTED. Preliminarily, both the Federal Arbitration Act ("FAA") and the California Arbitration Act require the existence of a valid Arbitration Agreement, before arbitration can be compelled. (See 9 U.S.C. §2 and Code of Civ. Proc. §1281.2). "If a party to a civil action asks the court to compel arbitration of the pending claim, the court must determine in a summary proceeding whether an 'agreement to arbitrate the controversy exist.'" (Iyere v. Wise Auto Group (2023) 87 Cal.App.5th 747, 754.) "Because the existence of the agreement is a statutory prerequisite to granting the petition, the petitioner bears the burden of proving its existence by a preponderance of the evidence. If the party opposing the petition raises a defense to enforcement...that party bears the burden of producing evidence of, and proving by a preponderance of the evidence, any fact necessary to the defense." (Rosenthal v. Great Western Fin. Securities Corp. (1996) 14 Cal.4th 394, 413.) The right to arbitration depends upon contract; a petition to compel arbitration is simply a suit in equity seeking specific performance of that contract. (Little v. Pullman (2013) 219 Cal.App.4th 558, 565.) The petitioner bears the burden of proving the existence of a valid arbitration agreement by the preponderance of the evidence, and a party opposing the petition bears the burden of proving by a preponderance of the evidence any fact necessary to its defense. (Id.) In these summary proceedings, the trial court sits as a trier of fact, weighing all the affidavits, declarations, and other documentary evidence, as well as oral testimony received at the court's discretion, to reach a final determination. (Id.) As this motion is unopposed, it is undisputed that the FAA applies here. Further, it is undisputed that Plaintiff, through her daughter, Arlene Rebuyon, acting as Plaintiff's attorney-in-fact, agreed to arbitrate various claims arising out of her stay with Defendant, including "all disputes arising from or related to this Agreement or to your rights, obligations, care, or services at the Community shall be resolved by submission to neutral, binding arbitration...and it includes, without limitation, personal

		injury and wrongful death claims.” (Philson Decl. at ¶¶ 5, 6, Ex. A, p. 25; Ex. B, power of attorney.) It is further undisputed that Plaintiff’s claims against Defendant falls within the Arbitration Agreement. In fact, Defendant represents that the parties have agreed to arbitration before Robert N. Dobbins, Esq. with Judicate West and have paid the required arbitration fees. (See, Ntc. Of Non-Opp, pp. 2:4-5, ROA 36.) As Plaintiff does not oppose the instant motion, Plaintiff does not raise any issues related to the defense to enforcement. In light of the above, Defendant’s Motion to Compel Arbitration is GRANTED. This action is STAYED pending resolution of the arbitration. (Code Civ. Proc. § 1281.4; 9 U.S.C. §§ 3 and 4.) The Court hereby sets a post-arbitration status conference for March 26, 2027 in this department. Moving Party to give notice.
54	Esparza vs. Holland 25-01510068	1. Demurrer to Complaint 2. Motion to Strike Complaint Defendants Derek Holland and Holland & Holland Law Offices, Inc.’s demurer is OVERRULED as to the second cause of action for breach of fiduciary duty and SUSTAINED as to the third cause of action for breach of contract asserted in the Complaint. Should Plaintiff desire to file an amended complaint that addresses the issues in this ruling, Plaintiff must file and serve it within 20 days of service of notice of ruling. In ruling on a demurrer, a court must accept as true all allegations of fact contained in the complaint. (<i>Blank v. Kirwan</i> (1985) 39 Cal.3d 311, 318.) A demurrer challenges only the legal sufficiency of the affected pleading, not the truth of the factual allegations in the pleading or the pleader’s ability to prove those allegations. (<i>Cundiff v. GTE Cal., Inc.</i> (2002) 101 Cal.App.4th 1395, 1404-05.) <u>Second Cause of Action for Breach of Fiduciary Duty</u> The elements of a cause of action for breach of fiduciary duty are the existence of a fiduciary relationship, breach of fiduciary duty, and damages. [Citation.]” (<i>Oasis West Realty, LLC v. Goldman</i> (2011) 51 Cal.4th 811, 820–821.) In or around late February 2023, Plaintiff retained Defendants to represent him and litigate his personal injury claims arising from an incident in which a heavy display case fell on Plaintiff when Plaintiff was